

pursuant to Cal. Code of Civ. Proc. § 415.30 against Defendant Richard Kent (“Defendant”). The Motion was supported by a Notice, Declaration of Lonnie Kocontes. Plaintiff seeks to recover \$400.00 in costs for personal service. However, no receipts, invoices or reasonable objective proof that he paid \$400.00 to a process server is included with Plaintiff’s moving papers.

An opposition was filed by Defendant through counsel Carolyn Cain, Esq. Defendant denies receiving mail copies of the summons, complaint and acknowledgment form, but admits that he was personally served with summons and first amended complaint on September 30, 2025. Defendant further argues that the alleged \$400.00 in costs incurred by plaintiff is excessive, based on Counsel’s routine practice of retention of process servers.

The reply brief filed by Plaintiff Counsel on January 28, 2026 contains no further proof of actual costs incurred.

Analyses

The Court acknowledges that Cal. Code of Civ. Proc. § 415.30 requires this Court to award costs of service if a litigant, upon service by mail, fails to complete and return an acknowledgement form. Indeed, section (d) of Cal. Code of Civ. Proc. § 415.30 states:

(d) If the person to whom a copy of the summons and of the complaint are mailed pursuant to this section fails to complete and return the acknowledgement form set forth in subdivision (b) within 20 days from the date of such mailing, the party to whom the summons was mailed shall be liable for reasonable expenses thereafter incurred in serving or attempting to serve the party by another method permitted by this chapter, and, except for good cause shown, the court in which the action is pending, upon motion, with or without notice, shall award the party such expenses whether or not he is otherwise entitled to recover his costs in the action.

Applied here, Plaintiff does not prove, by a preponderance of the evidence, that he incurred \$400.00 in costs to effectuate personal service on Defendant. While the Declarations of the process server and Plaintiff’s motion documents contain such representation, no objective, verifiable proof of costs accompanies the motion. Plaintiff has not submitted a receipt, invoice, statement by the process server, or proof of payment that supports the \$400 claim for costs. Moreover, the Court finds reasonable Defendant’s argument that such costs exceed the normal costs for process service.

Ruling

Plaintiff’s Motion for reimbursement of costs of service in the amount of \$400 is **denied** without prejudice. Defendant’s counsel shall prepare a proposed order conforming to this ruling and e-file it with the Court no later than five (5) days after the date of the hearing of this motion.

15. 9:00 AM CASE NUMBER: C25-02843
CASE NAME: JULIANO SILVA VS. JAMES RIVER INSURANCE
***HEARING ON MOTION IN RE: SETTING THE REASONABLE DEPOSITION FEE FOR DR. ROBERT ROVNER**
FILED BY: SILVA, JULIANO

TENTATIVE RULING:

On January 28, 2026, this motion was continued, *sua sponte*, to March 26, 2026 in Department 10 at 9:00 a.m. No appearance is required on February 4, 2026.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C23-00908

CASE NAME: ABDO NASSER VS. DOES 1 TO 50

***HEARING ON MOTION FOR DISCOVERY COMPEL ENTRY OF PROTECTIVE ORDER GOVERNING CONFIDENTIAL INFORMATION**

FILED BY: MW CELL REIT 1 LLC

TENTATIVE RULING:

Summary

Defendant MW Cell REIT 1 LLC's ("MWC" or "Defendant") Motion to Compel Plaintiff Abdo Nasser ("Plaintiff") to Enter a Protective Order governing Confidential Information and for sanctions for fees and costs in the amount of \$12,080 is vacated and referred to a Discovery Referee forthwith as set forth herein.

Background

In the Second Amended Complaint filed on April 8, 2024, Plaintiff pursues this suit against T-Mobile USA, Inc., T-Mobile West, LLC ("T-Mobile Defendants") and MWC alleging two causes of action, including trespass and nuisance related to cellular phone transmission facilities and related appurtenances that are alleged to have been placed on Plaintiff's property. Plaintiff seeks damages, including loss of use, general damages, property damages, and loss of earning capacity.

Through this Motion, MWC seeks a protective order claiming to protect certain trade secrets, confidential information, and other documents it claims to be protected by the California Uniform Trade Secrets Act. MCW seeks to protect, among other things, the alleged lease agreements, the costs of the lease, and the terms and conditions contained therein. MWC mentions that its practice of entering the form of protective orders sought have been approved by other courts in other cases. After attempting to meet and confer with Plaintiff's Counsel to enter into a protective order, MWC claims that Plaintiff refused to enter into a protective order.

In his opposition, Plaintiff's counsel contends that Plaintiff does not seek trade secrets, but it interested in understanding how much money MWC making by wrongfully leasing, occupying or using his real property. Plaintiff further argues that MWC did not prove the existence of a trade secret and waived its right to a protective order. The T-Mobile Defendants filed a statement of non-opposition to MWC's motion.

Past Admonitions

On July 31, 2025, at the hearing of a discovery motion initiated by Plaintiff, this Court has already found that both Parties, through Counsel, have acted improperly and have engaged in a misuse of the discovery process. The Court found that Plaintiff's counsel had clearly failed to meet and confer prior